New Hampshire AI Guidance Framework: Data and Student Privacy Passages

Excerpted verbatim from *PreK-12 Generative AI Guidance Framework for NH Schools (New Hampshire AI Education Collaborative / NH Learning Initiative, final draft dated June 4, 2025)*. Page numbers refer to the PDF pages of the source file. Ellipses (…) mark omitted text. Short passing mentions of privacy are marked (excerpt). Privacy language repeated in the family notifications for each grade band (Appendix 8) is quoted once per grade band. Bullets marked [graphic] on page 36 were reassembled from a two-column table.

Introduction: Purpose of the Document (excerpt)

Source: page 5

This NH Generative AI Framework provides practical strategies and ethical guidance on critical topics such as access, data privacy, academic integrity, and leveraging AI to enhance personalized learning and instructional innovation.

Support for Leaders and Policymakers (excerpt)

Source: page 7

- Procedures for protecting learner data and ensuring privacy and security.

Critical Areas for Planning (excerpt)

Source: page 9

3. Data Privacy and Security: Schools must prioritize protecting learners' personal information and be transparent about how AI tools handle data.

By addressing challenges like data privacy, access, and ethical use, educators can help learners and schools safely navigate a future where AI plays a central role in education and beyond.

The Importance of Family Engagement in AI Use in Schools (excerpt)

Source: pages 13–14

Clear communication about AI tools, their educational purpose, and data privacy protections helps build trust between schools and families.

Best Practices for School Communication

- Notify families before introducing new AI tools, including their purpose and how student data will (or will not) be used.

Developmentally Appropriate Use of AI in Early Learning: Simple, Safe Interfaces (excerpt)

Source: page 18

AI applications for young children must avoid advertisements, overstimulation, and complex navigation. They should not collect any personal data from children (as protected by COPPA) and must be part of a vetted, district-approved toolset.

Considerations for Using Generative AI in Education: 4. Protecting Data Privacy and Security

Source: page 24

Generative AI often requires access to learner data to personalize learning experiences, raising concerns about data privacy and security. Schools must ensure compliance with regulations like FERPA and maintain transparency about how data is collected, used, and stored. Implementing strict data protection measures and educating staff and learners about privacy safeguards is essential.

Balancing Opportunities and Challenges (excerpt)

Source: page 25

However, its successful integration requires proactive efforts to address challenges like accuracy, access, privacy, and integrity.

Guiding Principles for AI in Education: Privacy and Security

Source: page 26

- **Privacy and Security:** Learner data must be protected and used responsibly, adhering to strict privacy regulations. Educational institutions should not share personally identifiable information with consumer-based AI systems.

Specific Guidelines Considerations: Data Privacy and Security

Source: page 27

- **Data Privacy and Security:** Robust data privacy and security measures must be implemented.

AI Implementation Considerations (excerpt)

Source: pages 28–29

Phase 1: Research and Planning

Develop a Vision and Mission: Clearly articulate the district's vision for AI integration and establish specific goals and objectives aligned with the core principles of human-centered design, access, privacy, transparency, and ethical use.

Phase 2: Policy Development and Governance

Develop AI Policies and Guidelines: Create clear policies and guidelines for the ethical and responsible use of AI in the district, addressing issues like data privacy, intellectual property, algorithmic bias, and academic integrity.

Phase 3: Professional Learning

Develop a Professional Learning Plan: Create a comprehensive plan that covers a range of topics, including AI literacy, ethical considerations, pedagogical strategies, and data privacy.

AI for Learner Assessment: Questions to Consider Before Using AI

Source: page 33

- What personal identified information (PII) does the tool collect?
- Does the learner work contain PII?
- Are learners comfortable with their work being submitted to the tool?

L. Protecting Learner Data Privacy

Source: page 36

New Hampshire's FERPA guidelines and RSA 189:66 and RSA 189:68-a ensure schools protect learner data by requiring:

RSA 189:66 - Data Inventories and Policies

[graphic] Purpose: Establish requirements to create and maintain a data inventory and data governance plan.

- [graphic] School districts must maintain an up-to-date inventory of student personally identifiable information (PII) it collects.
- [graphic] Each district must adopt a data governance plan that outlines policies and procedures to ensure data privacy and security.
- [graphic] Staff in each district must be trained on data privacy and security policies.
- [graphic] The data and governance plan should be publicly available.
- [graphic] The data and governance plan must be reviewed annually.
- Any breaches of student data need to be reported to the NH Department of Education.

RSA 189:68-a - Learner Online Personal Information Protection

[graphic] Purpose: To protect the online personal information of students.

- [graphic] Vendors may not use student information for targeted advertising.
- [graphic] Student data cannot be used to create profiles for non-educational purposes.
- [graphic] Vendors may not sell student information. They must maintain security measures to protect unauthorized access to learner data.
- [graphic] If there is a breach of student data, that vendor must notify the school districts.
- [graphic] Parents have the right to review their student's information as maintained by the district or vendor.

These measures protect learners while ensuring transparency and accountability in AI integration.

Protecting Student Data Privacy: Guidance for School Districts from Classroom to State Testing

Source: pages 37–38

In a world where technology is woven into nearly every aspect of education, safeguarding student data privacy is not just a compliance issue—it's a commitment to building trust, safety, and accessibility in learning environments. From everyday classroom tools to large-scale assessments, districts must take a proactive and comprehensive approach to protecting student information at every level.

1. Build a Culture of Privacy Awareness

- Make data privacy a shared responsibility. Train all staff—teachers, administrators, IT, and support personnel—on what student data is, how it can be misused, and how to handle it responsibly.
- Empower students and families with transparent information about how data is collected, stored, and used in both classroom tools and testing environments.

2. Strengthen Classroom-Level Protections

- Vet all digital tools before use. Ensure they comply with state and federal privacy laws (FERPA, COPPA, PPRA) and are approved by the district.
- Avoid using personal teacher accounts for educational platforms—require district-managed logins to ensure secure access and audit control.
- Limit data collection to what is necessary for learning. Avoid collecting sensitive information unless required and approved.

3. Ensure Safe Practices in Digital Instruction

- Teach students digital citizenship, including how to protect their own information and understand consent in digital spaces.
- Regularly review access permissions on educational platforms—teachers should not retain access to student data beyond the course duration.

4. Implement District-Level Safeguards

- Maintain a clear data governance policy that defines roles, responsibilities, and protocols for data access, sharing, and breaches.
- Require vendors to sign student data privacy agreements (SDPAs) that clearly outline permitted uses and prohibit resale or repurposing of student data.
- Use secure data storage systems with encryption, access logs, and multi-factor authentication.

5. Protect Privacy in State Assessments

- Work closely with state agencies to ensure data shared for assessments is anonymized where possible and handled through secure channels.
- Clearly communicate to families how assessment data will be used, who will have access, and how long it will be stored.
- Monitor third-party testing vendors to ensure compliance with privacy standards and ensure there is a response protocol in the event of a data breach.

6. Review and Audit Regularly

- Conduct annual audits of data practices across schools, tools, and partnerships.
- Create a feedback loop with educators, students, and families to continuously improve data privacy practices.

Student data privacy isn't just about avoiding risk—it's about upholding the dignity and trust of every learner. With thoughtful guidance, practical policies, and transparent communication, districts can foster digital learning environments that are both innovative and secure.

Policy Development Guidance: 1. Responsible Use Policies (excerpt)

Source: page 45

Define Prohibited Uses: Clearly define inappropriate uses of AI tools that could compromise academic integrity, learner privacy, or safety. Examples include:

- Sharing personally identifiable information (PII) with AI tools

Parental Consent: Obtain informed consent from parents or guardians before collecting, using, or disclosing any learner data in connection with AI tools, especially for students under 13.

Policy Development Guidance: 2. Data Privacy and Security

Source: pages 45–46

Purpose: To establish protocols for protecting learner data when using AI tools, ensuring compliance with all applicable laws and regulations.

Legal Compliance: Explicitly state that all use of AI must comply with relevant laws, including:

- FERPA (Family Educational Rights and Privacy Act)
- COPPA (Children's Online Privacy Protection Act)
- CIPA (Children's Internet Protection Act)
- State-specific learner data privacy laws

Data Minimization: Collect only the student data necessary for the specific educational purpose of using the AI tool. Avoid collecting unnecessary or sensitive information.

Vendor Vetting: Establish a rigorous process for evaluating AI vendors' data privacy and security practices. Before adopting any AI tool, review:

- Privacy policies: Ensure they are clear, comprehensive, and compliant with regulations.
- Data security measures: Verify they have strong protections in place to prevent unauthorized access, use, disclosure, or destruction of student data.
- Data storage and transfer: Determine where and how learner data is stored and transmitted and if it aligns with the district's requirements.
- Data retention and deletion: Specify how long learner data is kept and ensure there are procedures for securely deleting data when it is no longer needed.

Transparency: Provide clear and accessible information to parents, learners, and staff about how learner data is collected, used, protected, and shared when using AI tools.

Data Breach Protocol: Develop and implement a comprehensive data breach response plan that outlines steps to be taken in the event of unauthorized access to or disclosure of student data.

Training: Provide training to staff on data privacy and security best practices related to AI, including recognizing and reporting potential breaches.

Appendix 2: Before You Use AI: Educator Checklist (excerpt)

Source: page 52

- Has the AI tool been vetted for age-appropriate use and compliance with privacy laws (e.g., FERPA/COPPA)?

Appendix 3: Sample Student Generative AI Use Agreement (excerpt)

Source: page 53

- To respect the privacy and safety of myself and others when using AI tools.

Appendix 7: AI Use Notification (excerpt)

Source: pages 57–58

Discuss the ethical considerations of AI, such as fairness, privacy, and when it's okay to use AI help

We will introduce AI slowly and carefully, ensuring that any tools used are developmentally appropriate, reviewed for safety and privacy, and aligned with learning goals.

Your child's safety, privacy, and learning experience are our top priorities. We will:

- Only use tools that comply with privacy and security standards (such as FERPA/COPPA)

Appendix 8: AI Use Notification by Grade Band (excerpt)

Source: pages 59–61

Elementary (page 59)

- All tools used are reviewed for child safety and privacy

Middle School (page 60)

- We review all tools for safety and student data privacy

High School (page 61)

- We will use only tools that comply with student privacy and security standards

Appendix 9: Model Policy for the Use of Artificial Intelligence in New Hampshire School Districts

Source: pages 62–64

However, their integration must align with core values of access, privacy, academic integrity, and human-centered education.

Ethical Use: AI use must align with ethical standards, protect data privacy, and maintain academic integrity.

Compliance with Copyright: Educators must avoid uploading copyrighted or proprietary student/staff work into generative AI systems.

III. Roles and Responsibilities

A. Students

- Protect personal and peer information when using AI tools.

B. Educators and Staff

- Use only AI tools that are included in the district's Student Data Privacy Agreement Database.

C. Administrators

- Ensure compliance with FERPA, COPPA, and other applicable data privacy laws.

IV. Data Privacy and Security

- No student or staff PII (personally identifiable information) may be input into AI tools unless vetted and secured under a district-approved privacy agreement.
- AI vendors must comply with NH state and federal laws, including FERPA, COPPA, and the NH Student Online Personal Information Protection Act (SOPIPA).
- Staff must not share student work, performance data, or private content with public AI tools unless approved.

VII. Communication with Families

- Parent communications must clarify privacy practices, intended instructional use, and student expectations.
- Families should have opportunities to ask questions or opt-out of specific AI tools when feasible.

Appendix 10: What Parents Should Know About AI in Schools (excerpt)

Source: page 65

- Respecting privacy, copyright, and honesty when using AI tools.

Appendix 12: Sample District-Level AI Tool & Policy Review Plan (excerpt)

Source: page 68

Purpose – To develop, review, and implement AI tools and policies that are aligned with district goals, instructional priorities, student privacy laws, and the developmental needs of learners.

Appendix 13: Guiding Principles for Balancing AI with Human Connection (excerpt)

Source: page 70

Talk with students about fairness, privacy, and responsibility.